LEASE AGREEMENT (1)
THIS AGREEMENT is made and executed at Kadampuram on this 22 September 2023

BETWEEN Balaji Iyer, son of Karthik Iyer, aged about 63 years, residing at No. 413, Gandhi Street, Solpuram, Arunhalli District, Kaveri Province, PIN 640644, hereinafter called the LESSOR of the one part;

AND Nilgiri Institute of Technology, run by Bharathi Bhairavi Vidyalaya Trust, represented by its Chairman Prakash Iyer, having its office at No. 267, College Street, Senkottai, Arunhalli District, Kaveri Province, PIN 685771, hereinafter called the LESSEE of the other part.

WHEREAS the Lessor is the absolute owner of the land and building in Survey No. 842/5B, Kadampuram, Arunhalli District, hereinafter called the Premises, and the Lessee has requested the Lessor to let the Premises for its institution.

WHEREAS the Premises were earlier let to M/s Sakthi Textiles under a lease deed dated 03-Feb-2017 for a period of fifteen (15) years commencing from 7 February 2017, which lease stood terminated on 21-Jun-2018.

NOW THIS DEED WITNESSETH AS FOLLOWS:

Clause 1: This Deed shall be governed by the laws of India and the courts at Arunhalli shall have exclusive jurisdiction in respect of all matters arising out of it. The Lessee shall pay the monthly rent of Rs. 31,000/- on or before the seventh day of every English calendar month by bank transfer to the account designated by the Lessor. The Lessor and its authorised representatives may inspect the Premises at reasonable hours after giving reasonable prior intimation to the Lessee.

Clause 2: A copy of the no-objection certificate dated 16 April 2023 issued by the Fire and Rescue Services Department is annexed to this Deed.

Clause 3: The Lessee has been put in possession of the Premises on 16-Oct-2023 for fit-out work, and the Lessor acknowledges the same.

Clause 4: The Lessee shall not store hazardous, explosive or prohibited materials in the Premises and shall observe all applicable environmental and safety regulations. If the Lessee commits default in payment of rent for a continuous period and fails to rectify it after written notice, the Lessor shall be entitled to initiate lawful proceedings for

recovery of dues and possession. The Lessce shall use the Premises only for running an educational institution, hostel, laboratory or allied administrative activities and for no other purpose.

Clause 5: The Lessor declares that it has a clear and marketable title to the Premises, that the Premises are free from encumbrances, litigation and attachment, and that it has full power to grant this Lease. The Lessee shall not store hazardous, explosive or prohibited materials in the Premises and shall observe all applicable environmental and safety regulations.

Clause 6: The Lessee shall pay the monthly rent of Rs. 31,000/- on or before the seventh day of every English calendar month by bank transfer to the account designated by the Lessor. The Lessee shall not sublet, assign or part with possession of the Premises or any portion thereof without the prior written consent of the Lessor.

Clause 7: The Lessee shall pay the monthly rent of Rs. 31,000/- on or before the seventh day of every English calendar month by bank transfer to the account designated by the Lessor. This Deed shall be governed by the laws of India and the courts at Arunhalli shall have exclusive jurisdiction in respect of all matters arising out of it.

Clause 8: The Lessee has deposited with the Lessor, as interest-free security, a sum equal to three months' rent, that is Rs. 25,00,000/-.

Clause 9: The Lessor declares that it has a clear and marketable title to the Premises, that the Premises are free from encumbrances, litigation and attachment, and that it has full power to grant this Lease. The Lessee may make internal partitions, install laboratory fittings and fix signboards at its own cost, provided that no structural damage is caused to the building.

Clause 10: The stamp duty, registration charges and incidental expenses of this Deed shall be borne equally by the Lessor and the Lessee. Force majeure events such as natural calamity, epidemic, riot or governmental restriction shall suspend the performance of the affected obligations only for the duration of such event.

Clause 11: This Deed shall be governed by the laws of India and the courts at Arunhalli shall have exclusive jurisdiction in respect of all matters arising out of it. The Lessor shall provide uninterrupted access to the common areas, parking

space, water supply and the approach road for students, staff and visitors of the Lessee.

Clause 12: The rent shall stand enhanced by 10 per cent w.e.f. 29-Oct-2026 and thereafter at intervals of every 2 (two) years.

Clause 13: All municipal taxes, property taxes and water charges relating to the Premises shall be borne by the Lessor, whereas electricity, internet and similar consumption charges shall be borne by the Lessee. Force majeure events such as natural calamity, epidemic, riot or governmental restriction shall suspend the performance of the affected obligations only for the duration of such event.

Clause 14: The Lease shall be for a period of 5 years commencing from 29-Oct-2023 and expiring on 16-Sep-2028.

Clause 15: The parties confirm that they have read and understood every clause of this Deed in the language known to them and have signed it voluntarily and without any coercion or undue influence. On the expiry or earlier determination of this Lease the Lessee shall remove its movable assets and hand over vacant and peaceful possession of the Premises in the same condition, ordinary wear and tear excepted. The Lessee shall obtain and keep in force all licences, consents and approvals required from statutory authorities for operating its institution in the Premises.

Clause 16: The parties confirm that they have read and understood every clause of this Deed in the language known to them and have signed it voluntarily and without any coercion or undue influence. If the Lessee commits default in payment of rent for a continuous period and fails to rectify it after written notice, the Lessor shall be entitled to initiate lawful proceedings for recovery of dues and possession. The stamp duty, registration charges and incidental expenses of this Deed shall be borne equally by the Lessor and the Lessee.

Clause 17: If the Lessee commits default in payment of rent for a continuous period and fails to rectify it after written notice, the Lessor shall be entitled to initiate lawful proceedings for recovery of dues and possession. This Deed shall be governed by the laws of India and the courts at Arunhalli shall have exclusive jurisdiction in respect of all matters arising out of it. The Lessee shall obtain and keep in force all licences, consents and approvals required from statutory authorities for operating its institution in the Premises.

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Clause 18: The Lessee may, at its option, renew this Lease for a further term of 1 year on mutually agreed rent by giving not less than one (1) month written notice before the expiry of the Lease.

Clause 19: The Lessee may make internal partitions, install laboratory fittings and fix signboards at its own cost, provided that no structural damage is caused to the building. All municipal taxes, property taxes and water charges relating to the Premises shall be borne by the Lessor, whereas electricity, internet and similar consumption charges shall be borne by the Lessee. The Lessee shall pay the monthly rent of Rs. 31,000/- on or before the seventh day of every English calendar month by bank transfer to the account designated by the Lessor.

Clause 20: All municipal taxes, property taxes and water charges relating to the Premises shall be borne by the Lessor, whereas electricity, internet and similar consumption charges shall be borne by the Lessee. This Deed shall be governed by the laws of India and the courts at Arunhalli shall have exclusive jurisdiction in respect of all matters arising out of it. The Lessor declares that it has a clear and marketable title to the Premises, that the Premises are free from encumbrances, litigation and attachment, and that it has full power to grant this Lease.

Clause 21: The Lessee shall keep the Premises in good and tenantable conditon and shall carry out ordinary repairs at its own cost, while structural repais shall be undertaken by the Lessor. The Lessee shall inndemnify the Lessor against any claim, loss or liability arising from the negligence or unlawful acts of the Lessee, its staff or visitors in the Premises. Any dispute arising out of this Deed shall first be settled by mutual discussion, failing which it shall be referred to a sole arbitrator appointed by mutual consent under the Arbitration and Conciliation Act, 1996, and the seat of arbitration shall be Kadampuram.

Clause 22: The Lessee shall obtain and keep in force all licences, consents and approvals required from statutory authorities for operating its institution in the Premises. The Lessor and its authorised representatives may inspect the Premises at reasonable hours after giving reasonable prior intimation to the Lessee. The parties confirm that they have read and understood every clause of this Deed in the language known to them and have signed it voluntarily and without any coercion or undue influence.

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Clause 23: The Lessee shall obtain and keep in force all licences, consents and approvals required from statutory authorities for operating its institution in the Premises. The Lessee shall maintain adequate fire safety equipment in the Premises and shall comply with the directions of the competent fire authority from time to time. Any dispute arising out of this Deed shall first be settled by mutual discussion, failing which it shall be referred to a sole arbitrator appointed by mutual consent under the Arbitration and Conciliation Act, 1996, and the seat of arbitration shall be Kadampuram.

Clause 24: Any notice under this Deed shall be in writing and shall be sent by registered post or by courier to the address of the other party stated above, and it shall be deemed to be served when delivered at that address. The Lessor declares that it has a clear and marketable title to the Premises, that the Premises are free from encumbrances, litigation and attachment, and that it has full power to grant this Lease.

Clause 25: The Lessee shall display its approval and affiliation details at a prominent place in the Premises and shall ensure that the Premises continue to satisfy the norms prescribed by the regulatory authorities. The Lessee shall pay the monthly rent of Rs. 31,000/- on or before the seventh day of every English calendar month by bank transfer to the account designated by the Lessor.

Clause 26: This Deed is presented for registration before the Sub-Registrar, Kadampuram, on 22 September 2023, and the stamp paper used for it was purchased on 22 September 2023.

IN WITNESS WHEREOF the parties have set their hands to this Deed at the place first written above in the presence of the following witnesses:

WITNESSES: 1. Prakash Kumar 2. Karthik Naidu

Place: Kadampuram Date: 22 September 2023